

CHAPTER 60.

An Act to amend the Law relating to the Pay and Pensions of the Royal Irish Constabulary, and for other purposes connected therewith. [21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. From and after the passing of this Act the pay of head constables, sergeants, acting sergeants and constables of the Royal Irish Constabulary shall be according to the respective rates specified in that behalf in the schedule to this Act instead of the rates specified in the First Schedule to the Constabulary and Police (Ireland) Act, 1883.

Alteration of rates of pay.

16 & 47 Vict. c. 14.

2.—(1) The provisions of section three of the Constabulary and Police (Ireland) Act, 1883 (relative to the right of constables to pensions), shall, in the case of all constables becoming members of the force after the passing of this Act, have effect with and subject to the following modifications (that is to say) :—

Retirement and pension of constables becoming members of the force after the passing of the Act.

(a) A constable who is not incapacitated for the performance of his duty by infirmity of mind or body shall not be entitled to retire and receive a pension unless and until he has completed not less than thirty years' service, and is not less than fifty years of age :

(b) A constable who has not completed fifteen years' service and is incapacitated for the performance of his duty by infirmity of mind or body shall not be entitled to retire and receive a pension unless the infirmity is occasioned by an injury received in the execution of his duty without his own default :

(c) A constable who has not completed fifteen years' service and is incapacitated for the performance of his duty by infirmity of mind or body occasioned otherwise than as aforesaid, and without his own default, may, if the inspector general allows him, retire, and the inspector general, if he thinks fit, may grant him a gratuity.

(2) Any reference in Part I. of the Constabulary and Police (Ireland) Act, 1883, to a service of twenty-five years or to a period of twenty-five years shall, in the case of all constables becoming members of the force after the passing of this Act, be construed as a reference to the period at the expiration of which a constable not being incapacitated by infirmity of mind or body may retire and receive a pension under this section.

3. Where a constable without his own default loses his life from the effect of an injury received in the execution of his duty, the pension granted to the widow of the constable under the Constabulary and Police (Ireland) Act, 1883, may be increased.

Increase of widows' pensions.

consent of the Treasury, be in excess of the maximum amount fixed for such pension in the pension scale under that Act, so that the excess be not in any case greater than one half of the maximum amount.

Amendment of
46 & 47 Vict.
c. 14, s. 3(5)

4. The inspector general may, with the consent of the Treasury, grant to any constable in whose case the requirements of subsection (5) of section three of the Constabulary and Police (Ireland) Act, 1883, are not fully complied with, a reduced pension of such amount as the inspector general may determine being less than the amount which the constable would be qualified to receive if those requirements were fully complied with.

Extension of
45 & 46 Vict.
c. 63, s. 3.

5. The provisions of section three of the Constabulary (Ireland) Amendment Act, 1882 (relative to pensions and allowances), shall, with the necessary modifications, apply to every assistant inspector general of the Royal Irish Constabulary who has retired since the first day of January nineteen hundred and eight, or who retires at any time after the passing of this Act in like manner as they apply to county inspectors and district inspectors of that force.

Calculation of
pension—

6. Any pension, pension allowance, or gratuity granted after the passing of this Act to a constable, or to the widow and children of a constable, or any of them, shall be calculated with reference to the scale of pay specified in the First Schedule to the Constabulary and Police (Ireland) Act, 1883, as amended by this Act, subject to the following exceptions in the case of constables who became members of the force before the passing of this Act (that is to say) :—

- (a) Where any such constable retires before he has completed thirty years' service and attained the age of fifty years (not being incapacitated for the performance of his duty by infirmity of mind or body), the pension of such constable shall be calculated with reference to the scale of pay which he would be entitled to receive if this Act had not passed ; and
- (b) A constable who became a member of the force before the tenth day of August one thousand eight hundred and sixty-six shall be pensioned in accordance with and subject to the provisions of section ten of the Constabulary and Police (Ireland) Act, 1883, relating to the pensions of men appointed before that date.

Interpretation.

7. For the purposes of this Act, unless the context otherwise requires, the expression "constable" means a constable of the Royal Irish Constabulary, and includes a head constable major, head constable, sergeant, and acting sergeant of that force.

Extent and
citation.

8. This Act applies to Ireland only, and may be cited as the Constabulary (Ireland) Act, 1908, and may be cited with the Constabulary (Ireland) Act, 1883, as amended.

SCHEDULE.

Section 1.

RATES OF PAY.

	Weekly Pay	
	s.	d.
Head constable :		
Five years' service in that rank and over	10	0
Under five years' service	37	6
Sergeant :—		
Four years' service in that rank and over	32	0
Under four years' service	30	0
Acting sergeant	29	0
Constable :		
Twenty-five years' service and over	28	0
Fifteen to twenty-five years' service	27	0
Thirteen to fifteen years' service	26	0
Eleven to thirteen years' service	25	0
Seven to eleven years' service	24	0
Four to seven years' service	22	0
Six months' to four years' service	21	0
Under six months' service	15	0

CHAPTER 61.

An Act to provide further facilities for the erection of Houses for the Working Classes in Cities and Towns in Ireland. [21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The maximum period which may be sanctioned as the period for which money may be borrowed by a local authority for the purposes of the Housing of the Working Classes Acts shall be eighty years, and as regards money so borrowed eighty years shall be substituted for sixty years in section two hundred and thirty-eight of the Public Health (Ireland) Act, 1878, and the Commissioners of Public Works in Ireland may make advances by way of loan to any local authority for the said purposes for such period (not exceeding eighty years) as may be sanctioned by the Local Government Board.

Extension of period of re-payment of loans.

11 & 12 Vict. c. 52.

(2) The local authority shall not be required, during the two years immediately following the exercise of any borrowing powers for the purposes of the said Acts, to pay off any portion of the principal moneys so borrowed by them, or to pay any money into a sinking fund for the redemption thereof.